



Vehicle Safety & Usage Policy Agreement

Employee-Owned/Leased Vehicles

Purpose

This document sets out the terms and conditions associated with employees driving their own vehicles for work purposes. This policy applies to all Johnstone Supply of CNY employees using their vehicles for work.

Definitions

To make sure everyone has a common understanding, the following definitions apply:

- Work-related driving is operating a motor vehicle in the course of your work, including driving to and from Johnstone Supply of CNY work sites and offices, and client or contractor offices or work locations. It may also include other driving approved by your manager. Work-related driving typically does not include commuting from your home to your primary workplace.
- An employee-owned vehicle is a vehicle for which the employee is the registered owner or the sole signatory of a vehicle-lease agreement.

Responsibilities

The President, includes his designated representative, is responsible for the overall implementation of this policy. He/she must:

- consult with the employee and their manager before authorizing an employee to use their own vehicle for work.
- review the policy annually with drivers, and management and make necessary improvements and updates.
- store and track associated documents (signed procedures, copies of vehicle insurance, completed inspection / mileage logs and maintenance records).
- will run a motor vehicle department check annually to determine your driving record.

Managers are responsible to confirm employees and employee-owned vehicles satisfy, and continue to satisfy, the terms and conditions of this policy. Managers will:

- before recommending that an employee use their vehicle for work, confirm the employee is legally authorized to drive, visually inspect the vehicle, provide the employee with a copy of this policy, review it with them and receive a copy with their signed agreement.

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- receive and check vehicle insurance, inspection and maintenance records.

Employees are responsible to satisfy the terms and conditions of this policy. In addition to requirements below, employees will:

- maintain a valid driver's license, acceptable driving record. Any changes in your driving record, including, but not limited to, driving infractions or changes to your insurance policy, must be reported to the Company. Any driving infractions will trigger a motor vehicle department check of your license.
- complete and provide necessary records to their manager in a timely manner.
- cooperate with managers during vehicle spot-checks.
- immediately tell their manager of any relevant changed circumstances (for example, licence suspension, new or different vehicle, vehicle not available for use, changes to vehicle insurance coverage, etc.).
- immediately report the loss of the company provided E-Z Pass to the President, includes his designated representative.

Vehicle Criteria

The President, includes his designated representative, will apply the following criteria before approving any employee-owned vehicle for work use. The vehicle:

- must be suitably designed / configured and equipped for its intended use.
- must satisfy requirements of the *Motor Vehicle Act* and other applicable statutes.
- must be in sound mechanical condition. For vehicles more than five years old, Johnstone Supply of CNY may require the employee to provide a thorough inspection report from a licensed mechanic.
- must be equipped with an anti-lock braking system and electronic stability control.
- if a 2011 or newer model, must have an National Highway Traffic Safety Administration ([NHTSA](#)) overall crash rating of four or five stars.
- must not have features or modifications that negatively influence vehicle handling dynamics or safety (lift kits, after-market bumpers, non-standard wheels or tires, etc.), driver visibility (dark window tints, stickers

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on windows) or compromise the company image (paint scheme or graphics).

- should not be more than 10 years old or have more than 300,000 miles. The President, includes his designated representative, will consider the nature and extent of intended vehicle use and may approve vehicles that do not meet these criteria.

Licensing and Insurance

Before using their vehicle for work, each employee will properly register, license and insure their vehicle, including:

- provide management with a current proof of insurance statement or card.
- add Johnstone Supply of CNY to car insurance binder.
- liability insurance coverage of at least \$1 million, plus collision and comprehensive coverage with deductibles of not more than \$1,000.00.
- correct rate class coverage.
- Each employee will:
 - have, maintain and renew insurance coverage while the vehicle is used for work.
- Provide Johnstone Supply of CNY with a copy of the current insurance documents before using the vehicle for work and when the policy is renewed or changed.

If an employee is in a high-risk pool for their driving record, please see Addendum A.

Monthly Vehicle Inspection and Maintenance

Each employee will inspect and maintain their vehicle consistent with legal requirements, and Johnstone Supply of CNY's procedures. The employee will:

- inspect the vehicle according to steps described in the [Monthly Vehicle Checklist](#).
- record inspection results using the [Monthly Vehicle Checklist](#), and provide completed Logs to their manager on request, and at least quarterly.
- ensure the vehicle is maintained consistent with manufacturer recommendations (as described in the vehicle owner's manual) using a licensed mechanic where appropriate.

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- provide maintenance records to their manager on request, and at least annually. *Note: maintenance intervals are determined by vehicle mileage and time. Johnstone Supply of CNY should receive and review maintenance records at least annually, and as often as quarterly, depending on how much the vehicle is used - overall, and for work-related purposes.*

General Driving Requirements

At all times, the employee will operate their vehicle consistent with legal requirements and Johnstone Supply of CNY procedures. The employee will:

- operate the vehicle in a manner that meets requirements in the *Motor Vehicle Act* and its *Regulations*, the *Workers Compensation Act* and the *Occupational Health and Safety Regulation*, and other driving laws.
- in winter, equip the vehicle with competent winter tires (e.g. sufficient tread depth).
- comply with driving practices explained in our following procedures.
 1. [Safe Driving Practices](#) - general driving rules, planning your route, etc.
 2. [Cell Phone Usage & Texting While Driving & Distracted Driving](#) – managing smartphones and other distractions.

If you use your personal vehicle in the course and scope of employment, you may not operate such vehicle while:

- Under the influence of drugs, alcohol, or any other substance that might impair your judgment or ability to drive; or
- Texting, emailing, or otherwise using a cell phone or other handheld device without utilizing a hands-free device.

Emergency Equipment

The vehicle owner is responsible to have in their vehicle a Vehicle Emergency Kit minimally containing items identified in our [Vehicle Emergency Kit List](#), and to maintain that Kit as described on the List.

Incident Reporting and Investigations

If involved in a motor vehicle incident, employees will cooperate to help Johnstone Supply of CNY meet its obligations, and to take steps to prevent future occurrences. The employee will:

- immediately report crashes to their manager.

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- complete the [Report of Motor Vehicle Accident Form](#) and submit it to their manager.
- cooperate with their manager to complete necessary reports (e.g. to [Employee Injury Report](#) if the crash results in injuries to any person).
- be willing to participate in the incident investigation, and work with the investigation team to facilitate the investigation, report and corrective measures.

Operating Expenses and Reimbursement

Johnstone Supply of CNY may, at its discretion, provide a Monthly Car Allowance to employees whose principal duties require extensive business travel. The Monthly Car Allowance, is intended to cover the cost of an automobile, including financing, insurance, maintenance and repairs, fuel, etc. Vehicles operated by those receiving such allowance should be appropriate for business use. As representatives of Johnstone Supply of CNY, those receiving a Monthly Car Allowance are expected to maintain their vehicles and keep them in a safe and clean condition. When operating their vehicles such employees shall observe applicable rules of the road. Monthly Car Allowance payments will be included in the employee's taxable income. No mileage reimbursement shall be paid to employees receiving a Monthly Car Allowance for business travel.

The Monthly Car Allowance amount is \$575.00 for full-time employees who use their own vehicles for business.

Signatures

I have read and understand the terms and conditions of this policy and agree to comply with them.

Employee signature

Date

Supervisor signature

Date

Attachments:

Monthly Vehicle Checklist
Safe Driving Practices for Employees
Cell Phone Usage & Texting While Driving
Distracted Driving

Vehicle Emergency Kit "Must Haves" List
Report of Motor Vehicle Accident (MV-104)
Employee Accident/Injury Report

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